sections 4 II (h) and 4 II (i) 12 of the Act, §§ 317.19 (c) and 317.11 (6) of the Rules and Regulations for the Registration of Distributors, Rule 12 of section XIII of the Marketing Rules and Regulations, and paragraphs (c), (e), (f) and (h) of the respondent's Distributor's Agreement by accepting and retaining distributors' discounts upon coal which respondent sold to its wholly-owned retailing corporation. The examiner recommended that the registration of respondent be suspended for a period of ninety days and that prior to reinstatement thereof respondent be required to make certain restitution to code members.

On November 3, 1942 respondent, J. S. Turley, died. On May 29, 1943, after the examiner's report was submitted, respondent's counsel filed a suggestion of death and on June 12, 1943 filed herein satisfactory proof of respondent's death.

Section 317.16 of the Distributors Rules provides that:

> Upon the death of a registered distributor or sale or other disposal of his business, his successor in interest or legal repersentative shall, within not exceeding 90 days in the case of death, or within 60 days in the case of sale or other disposal, apply to this Division for registration; otherwise the registration of such distributor shall expire.

The legal representative of the decedent has not filed with the Division an application for registration. Accordingly the registration of respondent expired as of February 3, 1943, ninety days from the date of his death, as provided in § 317.16 of the Distributors' Rules. I find and conclude therefore that the proceeding should be terminated and formally closed.

Now, therefore, it is ordered, That this proceeding is terminated. Appropriate indication of the expiry of the registration of J. S. Turley as a distributor will be made in the records of the Division.

Dated: June 23, 1943.

[SEAL] DAN H. WHEELER,
Director.

[F. R. Doc. 43-10201; Filed, June 25, 1943; 10:15 a. m.]

General Land Office.

[Public Land Order 136]

IDAHO

REVOKING EXECUTIVE ORDER NO. 4339 OF NOVEMBER 9, 1925, AS MODIFIED

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9337 (8 F.R. 5516) of April 24, 1943, it is ordered as follows:

Executive Order No. 4339 of November 9, 1925, as modified by Executive Order No. 5572 of March 7, 1931, withdrawing certain public lands in Tps. 3 and 4 S., R. 14 E., Boise Meridian, Idaho, for classification and pending enactment of legislation for their proper disposition, is hereby revoked.

ABE FORTAS,
Acting Secretary of the Interior.

JUNE 9, 1943.

[F. R. Doc. 43-10206; Filed, June 25, 1943; 11:26 a. m.]

Office of the Secretary.

[Order 1835]

BITUMINOUS COAL MINES

ORDER FOR TAKING POSSESSION

JUNE 23, 1943.

Amendment to Order No. 1809.

A number of bituminous coal mines throughout the nation producing 50 tons or more per day and operated by the companies listed in Appendix B, appended hereto and made a part hereof,[1] were not included in Appendix A to Order No. 1809, dated May 1, 1943 (8 F.R. 5767), taking possession of the nation's coal mines for operation by the United States in furtherance of the prosecution of the war.

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9340, dated May 1, 1943 (8 F.R. 5695), I take possession of each such mine including any and all real and personal property, franchises, rights, facilities, funds, and other assets used in connection with the operation of such mine and the distribution and sale of its products, for operation by the United States in furtherance of the prosecution of the war.

Order No. 1809 is hereby amended accordingly.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 43-10162; Filed, June 24, 1943; 4:37 p. m.]

[Order 1836]

ANTHRACITE COAL MINES

ORDER FOR TAKING POSSESSION

JUNE 23, 1943.

Amendment to Order No. 1810.

A number of anthracite coal mines throughout the nation producing 50 tons or more per day and operated by the companies listed in Appendix B, appended hereto and made a part hereof,[1] were not included in Appendix A to Order No. 1810, dated May 1, 1943, (8 F.R. 5767), taking possession of the nation's coal mines for operation by the United States in furtherance of the prosecution of the war.

By virtue of the authority vested in me by the President of the United States by Executive Order No. 9340, dated May 1, 1943 (8 F.R. 5695), I take possession of each such mine including any and all real and personal property, franchises, rights, facilities, funds, and other assets used in connection with the operation of such mine and the distribution and sale of its products, for operation by the United States in furtherance of the prosecution of the war.

Order No. 1810 is hereby amended accordingly.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 43-10163; Filed, June 24, 1943; 4:37 p. m.]

[1] Filed as part of the original document.

FEDERAL TRADE COMMISSION.

[Docket No. 4961]

BORTZ & COMPANY, ET AL.

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 24th day of June, A. D. 1943.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U.S.C.A., section 41).

It is ordered, That Webster Ballinger, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Wednesday, June 30, 1943, at two o'clock in the afternoon of that day (Central Standard Time), in Room 211, Post Office Building, Anderson, Indiana.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 43-10205; Filed; June 25, 1943; 11:00 a. m.]